

Vishnu Swaroop Gaud v. State of U.P.

Allahabad High Court · Division Bench · 20 August 2019 · Writ-C No. 25750 of 2019 · **Writ disposed; petitioner directed to Executive Engineer under clause 6.5.**

HEADNOTE

A consumer who challenges recovery of electricity arrears on the ground that the underlying bill is incorrect and excessive must first approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court will not examine the bill on merits and may dispose of the writ by directing the consumer to appear before the Executive Engineer, who shall consider the bill-correction grievance.

FACTUAL SUMMARY

Vishnu Swaroop Gaud challenged a recovery citation dated 29 June 2019 seeking Rs.70,190 as arrears of electricity dues based on a bill raised against him. He alleged that the bill was incorrect and excessive. Counsel for the licensee told the Court that the petitioner had not even responded to a notice dated 18 August 2019 calling on him to submit any grievance. The petitioner had not approached the Executive Engineer for correction of the bill under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where a consumer challenges a recovery citation on the plea that the electricity bill is incorrect and excessive, the proper forum is the Executive Engineer under clause 6.5 of the Supply Code. The writ court will not decide the correctness of the bill and will dispose of the petition by directing the consumer to appear before the Executive Engineer, who shall consider the matter regarding correction of the bill. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 The challenge to the recovery citation was not decided on merits; the petitioner was directed to the unused clause 6.5 Executive Engineer forum for bill correction. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL AND THE RECOVERY CITATION DATED 29.06.2019 WERE IN FACT INCORRECT OR EXCESSIVE

Left to the Executive Engineer if the petitioner appeared by 27.08.2019. ¶ 1